

HOUSE No. 3775

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa and Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the town of Hatfield to permit the use of golf carts on the public ways of the town.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/9/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/9/2025</i>

HOUSE No. 3775

By Representative Sabadosa of Northampton and Senator Comerford, a joint petition (accompanied by bill, House, No. 3775) of Lindsay N. Sabadosa and Joanne M. Comerford (by vote of the town) that the town of Hatfield be authorized to permit the use of golf carts on the public ways in said town. Transportation. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the town of Hatfield to permit the use of golf carts on the public ways of the town.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any other general or special law to the contrary, golf carts
2 may be driven on the public ways of the town of Hatfield, subject to the restrictions set forth
3 herein and in any bylaw passed by the town. For the purposes of this act, the public way shall not
4 include sidewalks.

5 SECTION 2. No person shall operate a golf cart on any public way without first
6 registering the vehicle with the town clerk and affixing a registration decal provided by the town
7 clerk to the rear right fender of the vehicle. The town clerk shall not register any golf cart
8 without proof that the vehicle is insured and unless it has first passed a safety inspection
9 administered by the chief of police or his designee. The town may charge a reasonable fee for
10 such inspection and registration which shall be set in a bylaw.

SECTION 3. No person shall operate a golf cart on any public way without a valid driver's license, except that a driver with a valid learner's permit may operate a golf cart with a licensed driver sitting immediately adjacent to the permit holder.

SECTION 4. No person shall operate a golf cart on a public way if any component of the vehicle has been modified from the original manufacturer's equipment in such a way as to enhance its speed. Without limitation, such modifications include the removal of the governor, and/or replacing the engine and power train with a larger one.

SECTION 5. No person shall operate a golf cart on a public way at a speed in excess of 20 miles per hour. No person shall operate a golf cart on any way where the speed limit exceeds 40 miles per hour, including any state highway.

SECTION 6. No person shall consume alcohol while operating a golf cart on any public way and no driver or passenger shall have an open container of alcohol within the golf cart while it is being operated.

SECTION 7. No person shall operate a golf cart on a public way between one-half hour after sunset and one-half hour before sunrise except where the select board has given permission to exceed this restriction for special events.

SECTION 8. Golf carts operating on public ways must stay to the right whenever possible and not impede the regular flow of traffic.

SECTION 9. All drivers and passengers must wear seat belts when a golf cart is operated on a public way.

31 SECTION 10. The town of Hatfield may adopt a bylaw setting fines for violations of this
32 act, provided that nothing herein shall prohibit any law enforcement officer from acting within
33 the scope of his duties by enforcing any traffic law or regulation using a uniform traffic citation
34 and applying the penalties therein.

35 SECTION 11. This act shall take effect upon its passage.